

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: September 17, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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101	Yanagisawa vs. Laguna Beach Company, Inc., 24-01444317	Brandon Tran of Dhillon Law Group ("Moving Attorney") moves to be relieved as counsel of record for defendant Laguna Beach Company, Inc. The motion is GRANTED. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) <i>Moving Attorney to give notice.</i>

102	Kaufman vs. Membreano, 25-01489200	Defendant, Mariela Membreano (“Defendant”), moves for an order reclassifying this action from Orange County Superior Court Unlimited Civil to Orange County Superior Court Limited Civil Jurisdiction, and that Plaintiff, Leslie Keith Kaufman (“Plaintiff”), and his attorney pay any and all reclassification fees. As a threshold matter, Plaintiff filed his opposition four days late on September 10, 2025. While a paper may not be rejected for filing on the ground that it was untimely submitted for filing, the court, in its discretion, may refuse to consider a late filed paper. (California Rules of Court, rule 3.1300(d).) Given that Defendant has addressed the substance of the opposition in the reply, the Court considers the late-filed opposition. Defendant contends that transfer of this case to Limited Jurisdiction will promote the ends of justice in that this action will involve the determination of questions not within the scope of unlimited jurisdiction. Plaintiff contends the motion should be denied as it was brought too late, just 32 days before trial, and that Defendant fails to satisfy the conditions set forth in Code of Civil Procedure section 403.040(b), by failing to showing good cause for not seeking reclassification earlier, and failing to meet the high burden of reclassifying a case from unlimited to limited jurisdiction. This motion is made pursuant to the Code of Civil Procedure, Sections 396 and 397, as well as 403.040 et seq. Pursuant to Code of Civil Procedure section 403.040(a), a defendant may file a motion to reclassify an action within the time allowed to file a responsive pleading. The statute states, in pertinent part, as follows: “(b) If a party files a motion for reclassification after the time for that party to amend that party's initial pleading or to respond to a complaint, cross-complaint, or other initial pleading, the court shall grant the motion and enter an order for reclassification only if both of the following conditions are satisfied: “(1) The case is incorrectly classified. “(2) The moving party shows good cause for not seeking reclassification earlier.”
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